

Lalit Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 January 2025 · 2025:AHC:2533-DB · Writ-C No. 41318 of 2024 · **Writ consigned to records; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ raising a billing dispute over electricity dues is not entertained at first instance. The consumer is to file a proper claim under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the competent forum, which shall decide expeditiously in accordance with law.

FACTUAL SUMMARY

Lalit Kumar petitioned the Allahabad High Court against electricity dues demanded from him by the distribution licensee. The writ raised various factual controversies about the billing dispute. The Division Bench of Ashwani Kumar Mishra and Donadi Ramesh JJ. declined to examine those facts in the first instance and instead directed him to the Supply Code billing-objection forum. The State of U.P. and three others were respondents.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-under-6.5

HOLDING

Factual issues in a billing dispute over electricity dues will not be entertained in writ at first instance. The consumer may approach the competent forum by filing a proper claim under Clause 6.5 of the U.P. Electricity Supply Code, 2005; if such a claim is raised, the forum shall decide it expeditiously in accordance with law.

¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ raising a billing dispute over electricity dues is not entertained at first instance. The consumer is to file a proper claim under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the competent forum, which shall decide expeditiously in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLING DISPUTE AND THE DISPUTED ELECTRICITY DUES

Court declined to entertain factual issues at first instance and relegated the petitioner to Clause 6.5. ¶ 1